



Notification Waiver Determination

Bingo Industries - JLW Services

Acquisition	BINGO Acquisitions Pty Ltd, trading as BINGO Industries (Bingo Industries), applied for a notification waiver in respect of its proposed acquisition of the assets of JLW Services Pty Ltd (JLW Services), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	20 June 2026

Parties to the Acquisition	The acquirer, Bingo Industries is a recycling and waste management company with operations in New South Wales, Victoria and Queensland. Bingo Industries provides collection, processing, recycling and disposal services for building and demolition waste as well as for commercial and industrial waste. The target, JLW Services, is based in Cootamundra, New South Wales, and provides collection, processing and recycling services for end-of-life tyres and mattresses, as well as onsite shredding and mine site clean-up services, servicing mainly regional locations in New South Wales, Queensland, Victoria and South Australia. Both parties are active in the supply of collection, processing and recycling services and alternative fuel sources in New South Wales, Victoria and Queensland.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is a small horizontal overlap between Bingo Industries and JLW Services in the supply of collection, processing and recycling services in specialised waste streams, in particular tyres and mattresses in New South Wales, Victoria and Queensland - there is a small horizontal overlap between Bingo Industries and JLW Services in the supply of alternative fuel sources to customers in New South Wales, Victoria and Queensland

	c. there are alternative suppliers of collection, processing and recycling services in specialised waste streams, in particular tyres and mattresses in New South Wales, Victoria and Queensland d. there are alternative suppliers alternative fuel sources in New South Wales, Victoria and Queensland. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**